

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-
LOUIS JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. DANIEL KIRK, Tax Id. No. 941225, Individually and in his Official Capacity, P.O. PETER WOODBURN, Tax Id. No. 947617, Individually and in his Official Capacity, P.O. DELVIS GARCIA, Tax Id. No. 945194, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 13, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

DET. DANIEL KIRK, Tax Id. No. 941225
Fugitive Enforcement Division
300 Gold St.
Brooklyn, NY 11201

P.O. PETER WOODBURN, Tax Id. No. 947617
63rd Precinct
1844 Brooklyn Ave.
Brooklyn, NY 11210

P.O. DELVIS GARCIA, Tax Id. No. 945194
Brooklyn South c/o 78th Precinct
65 6th Ave., 3rd Floor
Brooklyn, Ny 11217

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

DEVON DRAKES, AUBREY DRAKES, and KARL
PIERRE-LOUIS JR.,

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, DET. DANIEL KIRK, Tax
Id. No. 941225, Individually and in his Official Capacity,
P.O. PETER WOODBURN, Tax Id. No. 947617,
Individually and in his Official Capacity, P.O. DELVIS
GARCIA, Tax Id. No. 945194, Individually and in his
Official Capacity, and POLICE OFFICERS "JOHN DOE"
#1-10, Individually and in their Official Capacity (the name
John Doe being fictitious, as the true names are presently
unknown),

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR., by
their attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as
follows:

FACTS

1. Plaintiff DEVON DRAKES is an African-American male and has been at all
relevant times a resident of Kings County in the City and State of New York.
2. Plaintiff AUBREY DRAKES is an African-American male and has been at all
relevant times a resident of Duval County in the City of Jacksonville and the State of Florida.
3. Plaintiff KARL PIERRE-LOUIS JR.¹ is an African-American male and has been
at all relevant times a resident of Kings County in the City and State of New York.

¹ The NYPD and/or Kings County District Attorneys Office incorrectly spelled Mr. Pierre-Louis Jr.'s first name as
"Carl." However, the correct spelling of Mr. Pierre-Louis Jr.'s first name is "Karl."

4. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

5. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

6. That at all times hereinafter mentioned, the individually named defendants, DET. DANIEL KIRK, Tax Id. No. 941225, P.O. PETER WOODBURN, Tax Id. No. 947617, P.O. DELVIS GARCIA, Tax Id. No. 945194, and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

7. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

10. On or about February 1, 2016, in the County of Kings, City, and State of New York, plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. were lawfully present in the vicinity of 1396 E. 46th St. Brooklyn, NY.

11. At approximately 7:30 a.m. several members of the NYPD, including defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10 kicked in the door of the aforementioned location, entered the location, and began to search the premises.

12. Upon information and belief, the defendant police officers KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, did not enter pursuant to a valid search warrant.

13. Upon information and belief, the defendant police officers KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, did not provide a copy of said warrant to plaintiff upon repeated requests.

14. Upon information and belief, the defendant police officers KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

15. Upon information and belief, none of the plaintiffs were listed or described as suspects or targets on any application for any warrant.

16. Thereafter, defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, accosted plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. and immediately placed them under arrest by handcuffing their arms tightly behind their backs.

17. In addition, defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, searched plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. persons and effects without their consent or probable cause and/or reasonable suspicion.

18. At no time on February 1, 2016, did defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiffs' DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. persons or effects nor did they obtain voluntary consent from them to do so.

19. At no time on February 1, 2016, did defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiffs' DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. persons or effects.

20. At no time on February 1, 2016, did defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause to arrest plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR.

21. At no time on February 1, 2016, did defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR.

22. At no time on February 1, 2016 did plaintiffs DEVON DRAKES, AUBREY DRAKES, and/or KARL PIERRE-LOUIS JR. possess any firearms and/or forged instruments, have custody and control over any firearms and/or forged instruments, commit any crimes or

offenses or behave unlawfully in any way, nor was any evidence or contraband found on their persons or in their effects.

23. Thereafter, plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. were transported to a nearby police precinct where they were searched, fingerprinted, photographed, confined against their will in a holding cell for several hours, and charged with crimes by defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10. Specifically, plaintiff DEVON DRAKES was charged with Criminal Possession of a Weapon in the 2nd Degree, Criminal Possession of a Weapon in the 4th Degree, and Possession of Forged Instruments in the 2nd Degree, plaintiff AUBREY DRAKES was charged with Criminal Possession of a Weapon in the 2nd Degree, Criminal Possession of a Weapon in the 4th Degree, and plaintiff KARL PIERRE-LOUIS JR. was charged with Criminal Possession of a Weapon in the 2nd Degree, Criminal Possession of a Weapon in the 4th Degree.

24. After being detained at the aforementioned precinct for several hours plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. were transported to Central Booking where they were searched, subjected to a retina scan, and further detained in holding cells for several hours.

25. In connection with plaintiffs’ arrest, defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney’s Office. Thereafter, defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiffs’ arrests. Specifically, defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff DEVON

DRAKES was found to be in possession of two (2) loaded firearms and fifteen (15) forged credit cards, falsely stated that plaintiff AUBREY DRAKES was found to be in possession of two (2) loaded firearms, and falsely stated that plaintiff KARL PIERRE-LOUIS JR. was found to be in possession of two (2) loaded firearms and fifteen (15) forged credit cards.

26. As a result of the foregoing, plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. spent approximately twenty-four (24) hours in custody each before all charges against them were dismissed in their entirety on or about February 2, 2016 when the Kings County District Attorneys Office declined to prosecute their arrests.

27. In addition, as a result of the foregoing, plaintiff DEVON DRAKES missed approximately two (2) days of work causing him to lose wages. Further, several items of plaintiff DEVON DRAKE's property were, upon information and belief, confiscated by the above-mentioned defendant officers and not returned.

28. Further, as a result of the foregoing, several items of plaintiff AUBREY DRAKE's property were, upon information and belief, confiscated by the above-mentioned defendant officers and not returned.

29. As a result of the foregoing, plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. sustained, inter alia, loss of liberty, loss of property, lost wages, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

30. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiffs of their rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

36. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. As a result of the aforesaid conduct by defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were subjected to illegal, improper and false arrest by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS

“JOHN DOE” #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

38. As a result of the foregoing, plaintiffs’ liberties were restricted for an extended period of time, they were put in fear for their safety, and they were humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983

39. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. As a result of the aforesaid conduct by defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ home and possessions were illegally and improperly entered without consent, a valid warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

41. As a result of the aforesaid conduct by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ home was entered illegally at time not prescribed in the warrant, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

42. As a result of the aforesaid conduct by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were not provided a copy of said warrant upon their request, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

43. As a result of the aforesaid conduct by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were subjected to an illegal

search and seizure pursuant to an invalid search warrant obtained with stale information, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

44. As a result of the aforesaid conduct by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs were subjected to an illegal search and seizure pursuant to an invalid anticipatory search warrant for which probable cause was lacking, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

45. As a result of the aforesaid conduct by the defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs were subjected to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

46. As a result of the aforesaid conduct by defendants KIRK, WOODBURN, GARCIA, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs' home and possessions were illegally and improperly searched without any warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FOURTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

47. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

49. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- c. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause; and,
- d. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- e. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- f. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

53. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

54. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

55. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 13, 2018

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN

JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiffs DEVON DRAKES, AUBREY DRAKES, and KARL PIERRE-LOUIS JR. in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiffs is that the plaintiffs are not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 13, 2018

_____/S_____
ILYSSA S. FUCHS